

8. 9:00 AM CASE NUMBER: C25-03390
CASE NAME: CAROLINA DE ANDA VS. COUNTY OF CONTRA COSTA,
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY: COUNTY OF CONTRA COSTA,
TENTATIVE RULING:

Contra Costa County ("County") moves for judgment on the pleadings pursuant to Code of Civil Procedure section 438 with respect to the complaint filed by plaintiff, Carolina De Anda. The motion is **GRANTED**. Plaintiff has leave to amend as to the ninth through eleventh causes of action. As to the other causes of action, the motion is granted without leave to amend, as discussed below. If plaintiff contests this tentative ruling, counsel shall appear at the hearing prepared to discuss specific facts that she would add to an amended pleading that would change the results herein. Any amended complaint shall be filed and served on or before July 9, 2026.

I. Background

Plaintiff began working for the County on October 17, 2023 at A3 Miles Hall Crisis Center. (Complaint, ¶18.) Upon beginning employment, plaintiff informed the program manager, Debbie Thomas, that she had ADHD and anxiety. (*Ibid.*) Several months later, in May 2024, plaintiff received a crisis call and, upon receiving an address from the caller about where to go, she conveyed to the field team. (*Id.* at ¶19.) Later that day, Thomas accused plaintiff of providing the wrong address and jeopardizing the field team's safety, questioning plaintiff's fitness for her position due to her mental health disability and suggesting plaintiff find another position. (*Ibid.*)

Soon thereafter, plaintiff sought "accommodation" for her mental health disability via email to HR. (Complaint, ¶20.) In response, plaintiff received an FMLA form, but she clarified that what she needed was not time off, but an "accommodation for her disability." (*Ibid.*) Plaintiff was requested to provide a doctor's note. (*Ibid.*) When plaintiff's psychiatrist asked for more information regarding specific job duties and performance concerns, plaintiff told Thomas about the need, but because Thomas was out on a three-week vacation, the request could not be immediately met. (*Id.* at ¶21.) When Thomas returned, plaintiff met with her to request the information needed by the doctor, but Thomas said that specific feedback could not be given regarding plaintiff's performance. (*Id.* at ¶22.)

Around May 31, 2024, plaintiff's work partner was physically assaulted by a client during a field visit. (Complaint, at ¶23.) While Thomas assisted the work partner and debriefed the incident with her, she declined to meet with plaintiff, telling plaintiff she was too tired. (*Ibid.*)

On or about June 2nd, per Thomas's instructions, plaintiff was removed from crisis phone calls and was not allowed to go into the field for client interactions. (Complaint, ¶24.) A couple of weeks later, on June 18th, plaintiff requested clarity regarding her performance in order to further her disability accommodation request. (*Id.* at ¶25.) Plaintiff also complained about the lack of feedback, which inhibited her ability to obtain a doctor's note for accommodations, but Thomas did not respond to these concerns. (*Ibid.*)

Approximately one month later, on July 2nd, plaintiff again requested information to further her request for accommodations, and Thomas responded by saying there were concerns about plaintiff's work performance, without giving specifics. (Complaint, ¶26.) Plaintiff asked for clarification, and Thomas said they could talk about it later, but instead, four hours later, Thomas

terminated Plaintiff's employment. (*Ibid.*)

In addition to this narrative, plaintiff alleges wage and hour violations including missed meal breaks resulting from her crisis-response duties, as well as unpaid wages. (Complaint, ¶¶28-29.) She also alleges "various acts of unlawful and unfair business practices as defined in the Unfair Competition Law, Business and Professions Code §§ 17200 et seq."

Plaintiff's complaint was filed on November 18, 2025. Plaintiff alleges 13 causes of action:

1. Failure to Pay Overtime Wages (Labor Code §§ 510, 1194, 1198) (C/A 1)
2. Failure to Provide Meal Periods (Labor Code §§ 226.7, 512) (C/A 2)
3. Failure to Pay All Wages Due Upon Termination (Labor Code §§ 201-203) (C/A 3)
4. Failure to Provide Accurate Wage Statements (Labor Code § 226) (C/A 4)
5. Retaliation in Violation of FEHA (Gov. Code § 12940(h)) (C/A 5)
6. Unfair Business Practices (Bus. & Prof. Code § 17200 et seq.) (C/A 6)
7. Discrimination Under FEHA (Gov. Code § 12940(a)) (C/A 7)
8. Hostile Work Environment Under FEHA (Gov. Code § 12940(j)) (C/A 8)
9. Failure to Accommodate Under FEHA (Gov. Code § 12940(m)) (C/A 9)
10. Failure to Engage in the Interactive Process Under FEHA (Gov. Code § 12940(n)) (C/A 10)
11. Interference with Accommodations Under FEHA (Gov. Code § 12940) (C/A 11)
12. Wrongful Termination Under FEHA (Gov. Code § 12940(a)) (C/A 12)
13. Failure to Prevent Discrimination / Harassment / Retaliation (Gov. Code § 12940(k)) (C/A 13)

The County answered on December 31, 2025 by way of a general denial with 32 affirmative defenses. The County then filed this motion on February 17, 2026 after efforts to meet and confer with plaintiff's counsel (see Declaration of Sean M. Rodriguez in Support of Motion), as required by statute.

Plaintiff opposes the motion.

II. Standard

Code of Civil Procedure, § 438 (c)(1)(B)(ii) allows the Court to grant a motion for judgment on the pleadings in favor of a defendant if the complaint fails to state facts sufficient to constitute a cause of action against that defendant. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Like on demurrer, when considering a motion for judgment on the pleadings, the Court must accept as true all facts alleged in the complaint. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1151.) Further, leave to amend is routinely granted where a defect can reasonably be cured by amendment. (*Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989.)

III. Request for Judicial Notice

The County requests judicial notice of the following five documents:

Exhibit A: Plaintiff's Appeal to the County Merit Board, July 13, 2024

Exhibit B: County's Response to Plaintiff's Appeal, Aug. 20, 2024

Exhibit C: County Merit Board Notice of Decision, Sept. 6, 2024

Exhibit D: County Personnel Management Regulations (excerpts)

Exhibit E: Declaration of Stacey M. Boyd Confirming Absence of Government Claim

The unopposed request is **granted**.

IV. Discussion

A. Wage and Hour Claims (Causes of Action 1-4)

The County argues that the wage claims fail because it is a public entity. The County cites authority for this position, much of which refers to statutory interpretation of the very code sections relied upon by plaintiff. The Court has reviewed these cases and others which state similar principles with respect to the wage claims not being applicable to public entities. (See *California Correctional Peace Officers' Assn. v. State of California* (2010) 188 Cal.App.4th 646, 652-653; see also *Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 643-645.)

In response, “[p]laintiff disagrees and maintains that her claims are adequately pleaded.” (Opposition, 16:7.) She requests leave to amend, but does not cite any authority to the contrary or suggest any facts that would defeat the general principle that these claims are inappropriate against the County. Instead, she simply states her FEHA causes of action “remain viable.” (Opposition, 16:9-13.)

The motion is granted without leave to amend as to the first through fourth causes of action.

B. UCL Claim (Cause of Action 6)

The County further argues it is not subject to liability under the Unfair Competition Law (Bus. & Prof. Code § 17200 *et seq.*) and cites *People for Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 875, wherein the court held that “public entities [...] are not “persons” who are subject to suit under the UCL.” Plaintiff’s opposition takes the position that she has a factually distinguishable cause of action and could amend if necessary, but there appears to be no basis for ignoring this binding rule here and plaintiff provides no specific facts she would add if allowed. The County is a public entity that would not be considered a “person” under the statutory definition.

Accordingly, the motion is granted with respect to this cause of action without leave to amend.

C. FEHA Claims (Causes of Action 5, 7-13)

1. Exhaustion

The County raises plaintiff’s failure to exhaust administrative remedies. FEHA requires that an employee file a charge with the CRD that sets forth the particulars of any FEHA violations, prior to filing a lawsuit. Exhaustion in the CRD is mandatory and jurisdictional with respect to FEHA claims and thus an employee pursuing FEHA claims in court must have first filed an administrative complaint and obtained a right-to-sue letter from the agency. (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1002-1003, citations omitted.) Claims in the employee’s civil complaint that fall outside the scope of the DFEH/CRD complaint are barred. (*Ibid.*)

Plaintiff’s opposition argues that she *did* timely file a complaint with the U.S. Equal Employment Opportunity Commission and the California Civil Rights Department, formerly known as

the Department of Fair Employment and Housing (DFEH). She thereafter received a “Right-to-Sue” letter from each and commenced this action. These factual contentions are *not* pleaded in the complaint. Because exhaustion has not been pleaded, the Court finds plaintiff has failed to state her causes of action. However, these arguments do support the propriety of allowing amendment.

The motion is granted as to the fifth and seventh through thirteenth causes of action. Because plaintiff appears to have exhausted under FEHA, she has leave to amend counts 9-11.

As for counts 5 (retaliation), 7 (discrimination), 8 (hostile work environment), 12 (wrongful termination), and 13 (failure to prevent discrimination /harassment/ retaliation), they are further barred by *Johnson v. City of Loma Linda*, as discussed below, and amendment would be futile.

2. *Johnson v. City of Loma Linda and Merit Board Decision (Counts 5, 7, 8, 12, and 13)*

The County relies upon *Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61 to argue that plaintiff’s FEHA claims are barred based on the adverse outcome of her administrative remedy. Specifically, on September 6, 2024, the County’s Merit Board notified plaintiff in writing that her appeal was denied. Instead of seeking judicial review, she waited more than a year and brought the complaint in this action, which does not even mention the Merit Board decision.

In *Johnson*, the California Supreme Court held that a personnel board's findings were binding with respect to plaintiff’s FEHA claims. Under the doctrine of exhaustion of judicial remedies, unless a party to a quasi-judicial administrative agency proceeding challenges the adverse findings made in that proceeding, by means of a mandate action in superior court, those findings are binding in later civil actions. (*Johnson v. City of Loma Linda* (2000) 24 Cal.4th 61, 71.) The doctrine applies to FEHA claims brought by public employees. (*Ibid.*) The court stated as follows: “We conclude that when, as here, a public employee pursues administrative civil service remedies, receives an adverse finding, and fails to have the finding set aside through judicial review procedures, the adverse finding is binding on discrimination claims under the FEHA.” (*Johnson, supra*, 24 Cal.4th at 76.)

Plaintiff argues the County attempts to portray the holding too broadly and it would not, in fact, apply to her claims. She argues she did exhaust under FEHA, and that the Merit Board decision does not have preclusive effect here, at least in part because the standard for “issue preclusion” has not been met. But, as pointed out in the reply, collateral estoppel is not what the County is asserting. In fact, the majority opinion in *Johnson* declined to rely on the collateral estoppel effect of a final administrative finding, a position Justice Werdegarr stated she would have favored. (*Johnson, supra*, 24 Cal.4th at 78, conc. opn. of Werdegarr, J.)

Instead, the County correctly asserts the remedy for a plaintiff questioning the propriety of an administrative decision by a public entity is to seek a writ of mandamus. (See, Code Civ. Proc., §§ 1085, 1094.5.)

The motion is granted with respect to counts 5, 7, 8, 12, and 13. Because plaintiff does not assert any additional facts that would create a valid cause of action here, no leave to amend is warranted.

3. *Failure to Accommodate Under FEHA (Gov. Code § 12940(m)) (C/A 9) and Failure to Engage in the Interactive Process Under FEHA (Gov. Code § 12940(n)) (C/A 10)*

The County challenges the ninth and tenth causes of action because plaintiff fails to state the required elements. The elements of a failure to accommodate claim are (1) the plaintiff has a

disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.) With respect to failure to engage, a plaintiff has to additionally allege that she requested a reasonable accommodation so that she could perform the essential job requirements and defendant failed to participate in a timely, good faith interactive process. (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.)

Plaintiff argues the County “misapplies the pleading standard.” The Court agrees to some extent. While there are some inferences that could be drawn from the allegations, these border on legal conclusions. Plaintiff must do better to meet the factual pleading requirements, including alleging that she was able to perform essential functions of her position, and either the reasonable accommodation to which she was entitled or that she was willing to participate in an interactive process to determine whether a reasonable accommodation could be made, or both.

The motion is granted with respect to the ninth and tenth causes of action, with leave to amend.

4. Interference with Accommodations Under FEHA (Gov. Code § 12940) (C/A 11)

The County challenges this cause of action on the basis that it simply duplicates the cause of action for failure to accommodate. Plaintiff correctly responds that, assuming these claims overlap, dismissal is not warranted at the pleading stage. Still, based on the lack of sufficient allegations with respect to the tenth cause of action, this claim also fails. The motion is granted with respect to the eleventh cause of action, with leave to amend.

D. Contra Costa Health Services as a Defendant

The County seeks an order “dismissing” Contra Costa Health Services, which, according to the motion, does not exist as a separate entity. The plaintiff opposes such “dismissal.” The distinction between the actual moving defendant and the imaginary one that it seeks to dismiss is likely one without a difference. Since the complaint currently fails to state a cause of action, the Court declines to grant the motion on these grounds, in support of which the County provides no evidence (just legal commentary not binding on the particular entities at issue here), but nonetheless notes that if the County succeeds in defeating plaintiff’s complaint, any imagined or subsidiary entity (including Contra Costa Health Services) would be entitled to the same result.

9. 9:00 AM CASE NUMBER: C25-03841
CASE NAME: TERESA BANKS VS. 420 MEDFORD REO, LLC
***HEARING ON MOTION IN RE: TRANSFER OF VENUE**
FILED BY: 420 MEDFORD REO, LLC
TENTATIVE RULING:

Defendant 420 Medford REO, LLC (“Defendant”) filed a motion to transfer venue on February 13, 2026 (the “Motion”). The Motion was set for hearing on June 29, 2026.

Background

Defendant filed the Motion to transfer the action to Alameda County Superior Court. See Motion filed February 13, 2026, p. 1. The Proof of Service attached to the Motion and dated February 13, 2026